

B.Chinna Venkatagiri vs Smt.T. Kalpana on 15 June, 2022

Author: Ninala Jayasurya

Bench: Ninala Jayasurya

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE: CIVIL REVISION PETITION No.864 of 2022

PROCEEDING SHEET

Sl	DATE	ORDER	OFFICE
No			NOTE
3.	15.06.2022	NJS, J	

Heard the learned counsel for the petitioner.

The present Civil Revision Petition is filed against the Order dated 28.03.2022 in I.A.No.454 of 2021 in FCOP No.161 of 2021 on the file of the Judge, Family Court-cum-VII Additional District Judge, Ananthapuramu. By the said Order, the petitioner was directed to pay the respondent herein Rs.25,000/- per month towards interim

maintenance till disposal of the FCOP filed for judicial separation.

The learned counsel for the petitioner inter alia contended that the Revision Petition against the Order under challenge is maintainable as the same is only an Interlocutory Order pending disposal of the main Petition.

However, a Hon'ble Division Bench of the Delhi High Court in Manish Aggarwal vs. Seema Aggarwal, FAO No.388 of 2012, dated 13.9.2012 while referring to the relevant provisions of the Hindu Marriage Act (HM Act) and the decisions rendered by different High Courts held that in respect of the Orders passed under Sections 24 to 27 of the Hindu Marriage Act, appeals would lie under Section 19(1) of the Family Courts Act to the Division Bench, in view of the proviso to Sub-section (6) of Section 19 of the said Act, such Orders being in the nature of intermediate Orders. The Hon'ble Division Bench further clarified that all the Orders as may be passed by the Family Courts in exercise of its jurisdiction under Section Civil Revision Petition No.864 of 2022 7 of the Hindu Marriage Act, which have a character of an intermediate Order, and are not merely interlocutory Orders, would be amenable to the appellate jurisdiction under Sub-section (1) of Section 19 of the Family Courts Act.

The learned Single Judge of the Madras High Court in P.T.Lakshman Kumar vs. Mrs.Bhavani, CRP (PD) No.1765 of 2010 and batch, dated 23.04.2013, in fact taken a similar view while referring to the

orders of the Division Bench of Delhi High Court referred to above. The relevant portion of the order reads as follows:-

"In my considered view, since an order made under Section 24 of the Hindu Marriage Act puts an end to the right of the claimant for interim alimony, as well as, the litigation expenses, assuming that it is an order, certainly, it is not interlocutory order as this order will have no bearing on the main case. As has been held by the Division Bench of the Delhi High Court, in Manish Aggarwal's case cited supra, at the most, we may call it as an intermediate order, which is appealable under Section 19(1) of the Family Courts Act."

In the light of the well considered decision of the Delhi High Court, this Court is inclined to follow the same and hold that the present C.R.P is not maintainable.

However, considering the submissions made by the learned counsel, it is deemed appropriate to permit the petitioner to convert the present Civil Revision Petition into an Appeal.

After conversion of the matter, the Registry shall obtain necessary Orders from the Hon'ble the Chief Justice for listing the matter before the appropriate Division Bench.

_____ NJS, J IS